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April 9, 2026

ENGROSSED HOUSE
BILL NO. 3143

By: Cornwell, Turner, Lepak,
Wolfley and Roberts of the
House

and

Alvord of the Senate

An Act relating to medical marijuana; amending Section 2, Chapter 342, O.S.L. 2022, as amended by Section 6, Chapter 168, O.S.L. 2023, and Section 2, Chapter 342, O.S.L. 2024 (63 O.S. Supp. 2025, Sections 427.14a and 427.14c), which relate to the Oklahoma Medical Marijuana and Patient Protection Act; modifying dates for moratorium; deleting requirement to review and process applications by certain date; updating internal effective dates; providing restrictions for submitting applications to transfer ownership of medical marijuana businesses; requiring completion of administrative actions or appeals prior to submitting transfer applications; establishing time limitation for submitting applications following license annulments, revocations, or suspensions; deleting time limitation and requirement for submitting new applications; deleting certain refund requirement; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 2, Chapter 342, O.S.L. 2022, as amended by Section 6, Chapter 168, O.S.L. 2023 (63 O.S. Supp. 2025, Section 427.14a), is amended to read as follows:

1 Section 427.14a. A. Beginning ~~August 1, 2022~~ August 1, 2026,
2 and ending ~~August 1, 2026~~ August 1, 2028, the Oklahoma Medical
3 Marijuana Authority shall, ~~based on the number of current medical~~
4 ~~marijuana business licenses for dispensaries, processors, and~~
5 ~~commercial growers~~, declare and ~~establish a~~ extend the moratorium on
6 processing and issuing new medical marijuana business licenses for
7 dispensaries, processors, and commercial growers. The Executive
8 Director of the Authority shall be authorized to terminate the
9 moratorium at any time prior to ~~August 1, 2026~~ August 1, 2028, if
10 the Executive Director determines that all pending licensing
11 reviews, inspections, or investigations have been completed by the
12 Authority.

13 B. The provisions of this section shall not apply to the
14 renewal of a medical marijuana business license for a dispensary,
15 processor, or commercial grower under the provisions of Section
16 427.14 of this title or to the issuance of a medical marijuana
17 business license necessitated by a change in the ownership or
18 location of a medical marijuana dispensary, medical marijuana
19 processor, or medical marijuana commercial grower; provided,
20 however, the Authority shall be authorized to deny the request for
21 issuance of a medical marijuana business license due to a change in
22 ownership if the licensee is subject to any disciplinary action that
23 may necessitate the revocation, suspension, or nonrenewal of the
24 medical marijuana business license.

1 C. ~~The Authority shall review and process applications for~~
2 ~~medical marijuana business licenses for dispensaries, processors,~~
3 ~~and commercial growers if applications were received on or before~~
4 ~~August 1, 2022.~~

5 ~~D.~~ The Authority shall promulgate rules as necessary to
6 implement the provisions of this section.

7 SECTION 2. AMENDATORY Section 2, Chapter 342, O.S.L.
8 2024 (63 O.S. Supp. 2025, Section 427.14c), is amended to read as
9 follows:

10 Section 427.14c. A. ~~After the effective date of this act, no~~
11 No medical marijuana business shall be transferred without written
12 approval of an application by the Oklahoma Medical Marijuana
13 Authority.

14 B. A licensee intending to transfer ownership of a medical
15 marijuana business shall submit an application to the Authority.
16 Upon approval by the Authority, the applicant shall submit all
17 necessary documentation to the Oklahoma State Bureau of Narcotics
18 and Dangerous Drugs Control (OBNDD) consistent with an application
19 for a registration pursuant to the Uniform Controlled Dangerous
20 Substances Act and rules promulgated by OBNDD, including the
21 approved application issued by the Authority. The medical marijuana
22 business license and the OBNDD registration of the original owner
23 shall terminate fifteen (15) business days after issuance of the new
24 OBNDD registration. Upon approval of the new registration by OBNDD,

1 the prior owner and new owner shall effectuate the transfer of
2 medical marijuana products utilizing the state authorized seed-to-
3 sale tracking system within fifteen (15) business days.

4 C. Nothing in this section shall prevent the Authority from
5 denying an application, or the OBNDD from denying an application, to
6 register pursuant to the laws and rules of this state. In addition,
7 any medical marijuana business licensee intending to transfer
8 ownership of a medical marijuana business shall be prohibited from
9 submitting an application for said transfer if the licensee is
10 subject to any administrative action that may necessitate a
11 revocation, suspension, or nonrenewal of the medical marijuana
12 business license or OBNDD registration. Any pending administrative
13 action or appeal of an adverse determination by the Authority or by
14 the OBNDD concerning the medical marijuana business licensee or
15 registrant shall be completed in full prior to submitting an
16 application for a transfer of the medical marijuana business. If
17 the medical marijuana business license or OBNDD registration is
18 annulled, revoked, or suspended due to an administrative action, the
19 medical marijuana business licensee shall be prohibited from
20 applying for a transfer of the medical marijuana business for not
21 less than six (6) months after completion of the annulment,
22 revocation, or suspension term.

23 Application or registration denial shall not affect the existing
24 licensee and registrant. The existing licensee and registrant shall

1 be required to submit timely and sufficient renewal applications for
2 the business to continue to operate during the pendency of any
3 business transfer.

4 D. Nothing in this section shall authorize any new owner to
5 take possession of medical marijuana, medical marijuana concentrate,
6 or medical marijuana product or exercise control over any activities
7 involving the medical marijuana business unless and until the
8 application has been approved by the Authority and the new ownership
9 is registered with OBNDD.

10 E. Nothing in this section shall prohibit the prospective new
11 owners from being employed by the current owner during the transfer
12 process so long as the prospective new owner holds all proper
13 employee credentials in accordance with Section 427.14b of ~~Title 63~~
14 ~~of the Oklahoma Statutes~~ this title.

15 F. The new medical marijuana business owner shall provide the
16 Authority with a detailed inventory of any and all items enumerated
17 in the Oklahoma Medical Marijuana and Patient Protection Act
18 including, but not limited to, all seeds, plant tissue, clones,
19 plants, usable medical marijuana or trim, leaves, and other plant
20 matter, batches of extract, medical marijuana, medical marijuana
21 concentrate, and medical marijuana products upon taking control of
22 the business.

23 G. Any attempt to transfer a medical marijuana business,
24 medical marijuana, medical marijuana concentrate, or medical

1 marijuana products of a medical marijuana business without approval
2 from the Authority shall be grounds for revocation or nonrenewal of
3 the license and denial, revocation, or nonrenewal of current or
4 future licenses or license applications with ownership held by any
5 such person involved in the unlawful transfer.

6 H. The application fee shall be the annual license or
7 application fee established under Section 427.14 of ~~Title 63 of the~~
8 ~~Oklahoma Statutes~~ this title for medical marijuana business license
9 types.

10 I. ~~Any medical marijuana business with a pending application to~~
11 ~~transfer a business license on the effective date of this act shall~~
12 ~~have thirty (30) days from the effective date of this act to submit~~
13 ~~a new application pursuant to this section. The Authority shall~~
14 ~~refund the application fee to any applicant with a pending~~
15 ~~application to transfer upon receipt of the new application.~~

16 ~~J.~~ The Authority shall promulgate rules necessary for the
17 approval and denial of transfers of medical marijuana businesses.

18 SECTION 3. This act shall become effective August 1, 2026.

19 COMMITTEE REPORT BY: COMMITTEE ON BUSINESS AND INSURANCE
20 April 9, 2026 - DO PASS
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